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WITHOUT PREJUDICE

By Email

April 2, 2026

To,

Assistant Director
Legal Metrology Department, New Delhi
Ministry of Consumer Affairs, Food & Public Distribution
Department of Consumer Affairs
Legal Metrology Division
Krishi Bhawan, New Delhi – 110001
Phone: 01123386194
Email: Shashank.singh19@gov.in

Subject: Reply to your Legal Notice bearing reference No. PCR/DLM/26/88 dated: 19.03.2026

Ref: (i) Legal Notice bearing reference No. PCR/DLM/26/88 dated: 19.03.2026

(ii) Violation of the Legal Metrology Act, 2009 and the Legal Metrology (Packaged Commodities) Rules, 2011 regarding "Sounce Display Port to HDMI Adapter" listed on Amazon.in – ASIN: B0C4T1MSSN

Name of the Entity: Clicktech Retail Private Limited ("our Client")

Registered Off: 18, Rabindra Sarani Poddar Court Gate No. 2, Ground Floor, Kolkata, West Bengal - 700001

Corporate office: 16th & 21st Floor, World Trade Center, 26/1, Brigade Gateway, Dr. Rajkumar Road, Malleswaram - Rajajinagar, Bengaluru –560055

Respected Sir,

We are instructed by and act on behalf of our Client, abovenamed, under whose instructions we hereby submit the present Reply to the Notice as under:

1. Reference to the Notice:

We make reference to the Notice bearing Reference No. PCR/DLM/26/88 dated March 19, 2026 (hereinafter referred to as the "**Notice**"), which was received by our Client via email dated March 19, 2026. However, it is pertinent to note that the physical copy of the Notice, if dispatched by your good office, has not been received at either the registered office or the corporate office address of our Client.

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2. **Brief Background:**

i. As per the Notice, it is alleged that a consumer had purchased a product, namely "Sounce Display Port to HDMI Adapter, 1080p Display Port DP to HDMI Cable Male to Female Port Support Video & Audio Compatible with Computer, PC, Monitor, Projector, HDTV (Not Bidirectional), bearing ASIN: B0C4T1MSSN" (hereinafter referred to as the "**Product**"), through the e-commerce platform Amazon.in.

ii. It is further alleged that the said consumer raised a grievance regarding the absence of certain mandatory declarations on the physical packaging of the Product, as required under the provisions of the Legal Metrology Act, 2009 and the Legal Metrology (Packaged Commodities) Rules, 2011.

iii. In this regard, the Ld. Assistant Director has identified the following alleged non-declarations on the packaging of the Product:

a. Name and address of the manufacturer/packer/importer;
b. Country of origin;
c. Net quantity;
d. Month and year of manufacture; and
e. Consumer care details

3. **Reply on behalf of Clicktech Retail Pvt. Ltd.:**

i. At the outset, our Client submits that it is a registered seller on the e-commerce platform and operates under the Fulfilment by Amazon (FBA) model, wherein storage, packaging, and logistics functions are undertaken by third-party service providers.

ii. It is submitted that the Product in question is manufactured, packed, and imported by Sounce Retail Private Limited ("**Sounce Retail**"), a company duly incorporated under the Companies Act, 2013. Sounce Retail is solely responsible for ensuring compliance with all applicable statutory requirements, including the affixation of mandatory declarations on the physical packaging of the Product in accordance with the Legal Metrology Act, 2009 and the Legal Metrology (Packaged Commodities) Rules, 2011.

iii. Our Client further submits that it has entered into a Standard Domestic Vendor Agreement with Sounce Retail. Under Clause 2.1(a) (vi) of the said agreement, Sounce Retail has expressly represented and warranted that the manufacture, assembly, packaging, and sale of the Product are fully compliant with all applicable laws, including the Legal Metrology Act, 2009 and the Rules framed thereunder. Accordingly, Sounce Retail bears sole and primary responsibility for ensuring compliance with the applicable legal requirements.

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iv. It is further submitted that Clicktech acts purely in the capacity of a reseller and does not manufacture, pack, brand, or determine the packaging of the Product. The Product is received in the same condition as supplied by the manufacturer/vendor, including all packaging, labelling, and declarations. Our Client has neither repackaged nor relabelled the Product and has relied in good faith upon the representations and warranties provided by Sounce Retail under the vendor agreement. In these circumstances, any alleged non-compliance in respect of packaging or labelling is attributable solely to the manufacturer/packer/importer/vendor, and not to our Client.

v. It is respectfully submitted that the alleged non-compliances pertain to declarations mandated under Rule 6 of the Legal Metrology (Packaged Commodities) Rules, 2011, which are required to be affixed on the product packaging. The contractual and statutory responsibility for ensuring such compliance squarely lies with Sounce Retail, being the manufacturer, packer, and importer of the Product.

4. Prompt and Corrective Steps Taken by Our Client

i. Upon receipt of the Notice, our Client promptly approached Sounce Retail vide email dated 27.03.2026. In response, Sounce Retail has acknowledged its role as the manufacturer, packer, and importer of the Product and has undertaken to take necessary corrective steps, including updating the packaging to incorporate all mandatory declarations as required under applicable law. Sounce Retail has further indicated its intent to approach your good office for, inter alia, compounding of the alleged offences. Copies of the email communications dated 27.03.2026 and 31.03.2026 are annexed hereto as **Annexure A**.

ii. As an immediate precautionary measure, our Client has voluntarily suspended the Product listing and taken down the concerned ASIN from the e-commerce platform, pending full compliance and/or compounding of the alleged non-compliances by Sounce Retail.

5. Details of the Manufacturer, Packager & Importer

Name:	Sounce Retail Private Limited
Address:	23L, Floor-11, 3, Navjeevan Society, Dadasaheb Bhadkamkar Marg, Mumbai Central, Mumbai City, Mumbai, Maharashtra – 400008
Directors / Contact Persons:	Mr. Dhruvil Pavanraj Jain Mr. Pavanraj Chhaganlal Jain
iii. Email:	dhruvil@sounce.com

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6. **Conclusion**

In view of the foregoing, it is respectfully submitted that our Client has acted bona fide and has taken prompt and necessary steps upon receipt of the Notice. Our Client remains committed to ensuring compliance with all applicable laws and undertakes to extend full cooperation to your good office as may be required.

In light of the above, it is most respectfully prayed that your good office may be pleased to take the present reply on record and withdraw the Notice issued to our Client. This reply is being furnished without prejudice to our Client's rights and contentions in law, equity, and otherwise.

Yours Faithfully,

(Prince Pawaiya)
Advocate for **Clicktech Retail Pvt. Ltd.**
D-2465/2005

Suite No. 1019, 10th Floor,
Office Tower – 1, Logix City Centre,
Sector-32, Noida-201302,
prince@gnplegal.com

Enclosures:

1. Email communication dated March 27, 2026, issued by Clicktech Retail Private Limited to Sounce Retail Private Limited.
2. Email communication dated March 30, 2026, issued by Sounce Retail Private Limited to Clicktech Retail Private Limited acknowledging and admitting its liability.

CC to :

Sounce Retail Private Limited at its email address i.e. dhruvil@sounce.com

From: **Dhruvil Jain - Sounce** dhruvil@sounce.com
Subject: Re: URGENT: Statutory Notice Response & ASIN Suppression-ASIN: B0C4T1MSSN
Date: 30 March 2026 at 3:09 PM
To: Himadri Tiwari -(Legal) Himadri.T@clicktechretail.in
Cc: Hariprasad P J-(MVR) Hariprasad.pj@clicktechretail.in, Amoghavarsha T V-(MVR) amoghavarsha.t@clicktechretail.in, Himani Singh -(Legal) himani.s@newtrendscommerce.in, Parikalp Gupta -(Legal) Parikalp.g@clicktechretail.in

Dear Himadri,

We have reviewed the notice in its entirety.

We acknowledge Sounce's role as the importer and packer of the product, and we are already taking corrective action:

1. Packaging has been updated to include all mandatory declarations under Rule 6.
2. We are engaging a Legal Metrology consultant to file the response/compounding application with Mr. Shashank Singh within the 15-day timeline.
3. We will share the compliance/compounding documentation with Clicktech once received.

Regarding your request for a letter accepting full responsibility — we are willing to confirm Sounce's role and our commitment to compliance.

Thanks,
Dhruvil Jain

On Mon, 30 Mar 2026 at 08:45, Himadri Tiwari -(Legal) <Himadri.T@clicktechretail.in> wrote:

> Hi Dhruvil,
>
> Pursuant to our discussion on Friday, kindly share the confirmation.
>
> Regards,
>
> Himadri

From: Himadri Tiwari -(Legal)
Sent: 27 March 2026 17:09
To: dhruvil@sounce.com
Cc: Hariprasad P J-(MVR) <Hariprasad.pj@clicktechretail.in>; Amoghavarsha T V-(MVR) <amoghavarsha.t@clicktechretail.in>; Himani Singh -(Legal) <himani.s@newtrendscommerce.in>; Parikalp Gupta -(Legal) <Parikalp.g@clicktechretail.in>
Subject: URGENT: Statutory Notice Response & ASIN Suppression-ASIN: B0C4T1MSSN

Hi Dhruvil,

This is to formally notify you of a legal notice (**Ref: PCR/DLM/26/88**) issued by the Ministry of Consumer Affairs (Legal Metrology Division) in relation to **ASIN: B0C4T1MSSN** (**Sounce Display Port to HDMI Adapter**). Please find attached the notice below.

The concerned Legal Metrology officer has expressly identified that the product packaging is in violation of Rule 6 of the Legal Metrology (Packaged Commodities) Rules, 2011, due to the absence of mandatory declarations, including but not limited to Country of Origin, Manufacturer/Importer details, Net Quantity, Month and Year of Manufacture, and Consumer Care information.

As per **Clause 2.1(a) (vi) of the Standard Domestic Vendor Agreement (effective March 9, 2022)**, Sounce bears sole responsibility for ensuring full compliance with the Legal Metrology Act, 2009, the Legal Metrology

compliance with the Legal Metrology Act, 2009, the Legal Metrology (Packaged Commodities) Rules, 2011, and all applicable laws. This notice clearly establishes a material breach of these contractual obligations and warranties.

Please take immediate corrective action regarding this matter. Further note that any failure, delay, or inadequacy in addressing this matter will be treated as a serious contractual default. We reserve all rights and remedies available under the Agreement and applicable law, including indemnification and recovery of all associated liabilities, costs, and damages.

In view of the statutory 15 day deadline imposed by the Ministry, you are required to comply with the following on an urgent basis:

1. Submit a formal letter to Clicktech Retail Pvt. Ltd. on Sounce letterhead explicitly accepting full responsibility and liability for the alleged packaging non-compliances.

2. Immediately establish direct communication with the Assistant Director (Legal Metrology), Mr. Shashank Singh (Shashank.singh19@gov.in), and initiate action, including compounding of the alleged offences without delay.

3. Provide us with a copy of the compliance/compounding order or acknowledgement issued by the concerned Legal Metrology Officer for our official records.

This matter is time-sensitive and non-negotiable. We expect your immediate acknowledgment of this communication and confirmation of action taken.

Regards,

Himadri Tiwari

(Legal Associate)

Clicktech Retail Private Limited